HEADNOTE

"1. If a person skilled in the art recognises on the basis of their own expertise that they can find a solution in another technical field or that the problem to be solved arises in a similar manner in a factually related field, it is to be assumed that they consult experts or specialists in that technical field or obtain the corresponding information.
2. The inclusion of a particular manufacturing process in a product claim does not change the fact that it is a product claim. The inclusion of the manufacturing process in the patent claim merely serves for indirect further description of the product. It must therefore be examined whether the specified manufacturing process is indirectly reflected in special properties of the product. However, if these special properties can only be achieved by means of the specified manufacturing process, the patent is ultimately limited to products produced by the manufacturing process. Physical and functional properties of the product resulting from the application of the process are among the material features of the claimed product. Whether such features exist and which they are must be determined by interpreting the patent claim. What is decisive in this regard is how the specifications concerning the manufacturing process are to be understood from a professional perspective and what conclusions the person skilled in the art draws from this regarding the nature of the product that can be manufactured in this way.
3. If a patent claim does not contain an explicit specification regarding the sequence of process steps, this generally indicates that the sequence chosen in the patent claim is not mandatory.
4. A general term does not automatically disclose all specific terms falling under it that are not explicitly mentioned. Even though an explicit mention is not required for this, only what a person skilled in the art readily recognises upon careful reading and considers self-evident can be included in the disclosure content of a prior publication.
5. The jurisdiction of the UPC does not require that the UPCA be applied in the substantive matter. The question of jurisdiction is separate from the question of the temporal applicability of substantive law (UPC Court of Appeal, 2 June 2025, UPC-CoA-156/2025, XSYS/ESKO, para. 34; cf. CJEU, 5 September 2019, C-172/18, AMS Neve/Heritage et al., ECLI:EU:C:2019:674, para. 63 et seq.). This already follows from the fact that the court must, for reasons of legal certainty, be able to decide on the basis of the provisions of the UPCA and the Brussels Ia Regulation whether it has jurisdiction, without having to engage in a substantive examination (cf. CJEU, 16 March 1999, C-159/97, Trasporti Castelletti, para. 8).
6. The UPCA contains substantive law provisions in particular in Articles 63, 64, 67, 68 and 72 (cf. UPC Court of Appeal, 16 January 2025, UPC_CoA_30/2024, Fives/Reel, para. 66). Since there is no alignment between jurisdiction and applicable substantive law, the jurisdiction of the UPC does not entail that these provisions also apply to facts arising before 1 June 2023. There is no requirement to ensure that only the provisions of one legal order are applicable (CJEU, AMS Neve/Heritage et al., ECLI:EU:C:2019:674, para. 64).
7. While procedural provisions are generally assumed to apply from the date they enter into force, substantive law provisions must be interpreted, in the interest of legal certainty and the protection of legitimate expectations, as not applying to situations concluded before their entry into force, unless it is clearly apparent from their wording, purpose or structure that they are to be given such effect. For reasons of protection of legitimate expectations, new legal provisions are generally not applicable to legal positions that arose and were definitively acquired under the old law, but apply to future effects of a situation that arose under the old law and to new legal positions. This is different only — and subject to the

prohibition of retroactivity — where, together with the new provision, special provisions are enacted that specifically regulate the conditions for its temporal application. This prohibition of retroactivity, recognised under general customary international law and also following from Article 28 VCLT, must also be observed when interpreting the UPCA (cf. UPC Court of Appeal, 2 June 2025, UPC-CoA-156/2025, XSYS/ESKO, para. 35; CJEU, 22 June 2022, C-267/20, Volvo et al./RM, paras. 31-32).

8. The UPCA contains no provisions that explicitly regulate the conditions for temporal applicability to concluded situations. In particular, Article 3 UPCA contains no such provision (UPC Court of Appeal, 2 June 2025, UPC-CoA-156/2025, XSYS/ESKO, para. 27). Article 3(c) UPCA does provide, without restriction, that the Agreement applies to all European patents which have not yet expired at the time of entry into force of this Agreement or which are granted after that date. The same applies in accordance with Article 3(d) UPCA to European patent applications. The provision does not contain an express regulation of how already concluded situations are to be dealt with. Article 24 UPCA also contains no express provision regarding the temporal applicability of already concluded situations. This means that concluded situations relating to European bundle patents that arose before 1 June 2023 are governed by national substantive law, to be determined pursuant to Article 24(2)(a) UPCA in conjunction with Article 8(1) of Regulation (EC) No 864/2007 (Rome II). A situation is concluded when a legal position has arisen. In the case of claims for injunctive relief, the situation is only concluded when the infringement has definitively and seriously ceased, because each threatened or actual infringement gives rise to a new claim for prohibition that also has future effect. This means that where the infringer has not definitively and seriously ceased the infringing acts before 1 June 2023, the prohibition of retroactivity does not preclude the application of Article 63 UPCA (final injunctions).

9. The same applies to remedies under Article 64(2)(b), (c), (d) and (e) UPCA. Claims for recall and destruction from the distribution channels concern only the infringing items still present in the distribution channels and thus do not constitute a situation concluded before the filing of the action after 1 June 2023. The same applies to the claim for destruction, which concerns only the products in the direct and/or indirect possession and/or ownership of the infringer.

10. The position is different for claims for damages. Since each individual act of patent infringement gives rise to a claim for damages, the situation is concluded when the individual act is completed. Acts of use that were completed before the UPCA entered into force must therefore, with regard to claims for damages, be assessed exclusively under national law.

11. The same applies to claims for information that implement Article 8 of the Enforcement Directive (Directive 2004/48/EC), to the extent that they are not classified as procedural law under national law. By contrast, Article 67 UPCA applies to claims for information that are procedural in nature under national law.

12. The UPCA contains no substantive legal basis for damages or compensation arising from the provisional protection afforded by a published European patent application. Article 32(f) UPCA merely constitutes an allocation of jurisdiction in this respect. The court must therefore apply Article 67 EPC on the basis of Article 24(1)(c) UPCA, which in its paragraph 1 primarily provides for protection pursuant to Article 64 EPC (i.e. damages), but in paragraph 2 leaves the EPC contracting states a limited discretion that extends down to the lower limit of reasonable compensation. In this respect, national law is therefore applicable regardless of when the claim arose.

13. It is for the parties to submit their legal arguments and private expert opinions on national law (cf. UPC Court of Appeal, 13 August 2025, UPC-CoA-446/2025, Boehringer Ingelheim/Zentiva, para. 72). The burden of pleading and proof with respect to national law lies with the party that relies on a particular

> *content of national law. National law is not a fact within the meaning of Article 54 UPCA. However, its ascertainment does not depend solely on the content of the relevant statutory texts, but on how they are applied in legal practice and legal scholarship. This justifies an analogous application of Article 54 UPCA.*
> *14. The Enforcement Directive has been implemented by all Member States (cf. Commission Report, COM(2010) 779 final). Pursuant to Article 13(1) of the Enforcement Directive, Member States must ensure that the competent judicial authorities may order the infringer who knowingly, or with reasonable grounds to know, engaged in an infringing activity, to pay the rightholder damages appropriate to the actual prejudice suffered by him as a result of the infringement. Article 68(1) UPCA adopts these conditions for the award of damages in almost identical wording and does not go beyond this minimum standard of protection. It follows that the national provisions implementing Article 13 of the Enforcement Directive contain provisions corresponding to Article 68(1) UPCA and at any rate do not deviate from it to the detriment of the patent holder.*
> *15. Since Article 67(1) UPCA adopts the requirements of Article 8 of the Enforcement Directive, it follows for the same reasons that the right to information in the Member States does not fall short of the legal consequences provided for in Article 67(1) UPCA."*

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Infringement action

PATENT
EP 3 356 109

FOAM RESIN STRUCTURAL PART FOR A FRAME OF A VEHICLE AND PRODUCTION METHOD THEREFOR

KEYWORDS

- Competence of the UPC for pending cases...
- Applicable law to pending cases
- Prohibition of retroactivity
- Person skilled in the art
- Product-by-process claim
- Subject matter of appeal/Requirements for ...
- Late-filed arguments/new state of the art ra...

Article 3 Scope of application

SUMMARY
The Court of Appeal Luxembourg ruled on an infringement action. The patent at issue relates to a foam resin structural part for a frame of a vehicle and production method therefor. According to the headnotes of the decision, a person skilled in the art is presumed to consult relevant experts or obtain information from other technical fields when they recognize that a solution or similar problem exists there. When a product claim includes manufacturing process specifications, those specifications serve only to indirectly describe the product, and the claim is limited to products made by that process only if the specified properties cannot be achieved any other way. If a patent claim does not explicitly state that process steps must follow a particular sequence, this generally indicates that the sequence is not mandatory. A general term in a prior publication does not automatically disclose all specific terms falling within it unless a person skilled in the art would readily recognize them as self-evident upon careful reading. The jurisdiction of the UPC does not require that the UPCA be applied to the substantive merits of the case, since determining jurisdiction and determining which law applies substantively are separate questions. The UPCA contains substantive law provisions in Articles 63, 64, 67, 68 and 72, and because jurisdiction and applicable substantive law are not aligned, these provisions do not apply to facts arising before 1 June 2023. Procedural provisions of the UPCA apply from its entry into force, but substantive provisions apply to pre-existing situations only when their wording, purpose or structure clearly indicates retroactive application, in accordance with principles of legal certainty and protection of legitimate expectations. Since the UPCA contains no explicit provision addressing how concluded situations existing before 1 June 2023 are treated, substantive law provisions of the UPCA do not cover European patents involved in situations that concluded before that date.